

 Department of Children & Family Services <i>Building a Stronger Louisiana</i>	Division/Section	Family Support
	Chapter No./Name	4 –Economic Stability (ES)
	Part No./Name	B-Eligibility Factors (FITAP)
	Section No./Name	B-500 Home (FITAP)
	Document No./Name	B-510-FITAP Eligibility Requirement
	Effective Date	May 1, 2016

I. STATEMENT OF POLICY

A child must reside with a parent or other qualified relative who is responsible for the day-to-day care of the child.

- If the parent is in the home, the parent is the payee, unless a third party payee is required and available.
- If the parent is not in the home, the other qualified relative is the payee.

Eligibility of Two-Parent Households

FITAP households that have two parents residing in the home are not eligible for cash assistance unless at least one parent is determined to be:

- physically or mentally incapacitated, or
- caring for a disabled family member living in the home.

Note: This policy also applies to a pregnant woman only certification in which the father of the unborn child resides in the home.

Cases of applicants or recipients claiming a physical or mental illness or impairment must be reviewed for consideration of incapacity per * **C-1510-FITAP** **.

Cases of applicants or recipients claiming to care for a disabled family member living in the home must be reviewed for consideration based on documentation from a medical professional. Medical documentation must be obtained and must verify the need for the parent to remain in the home to care for the disabled family member. The need for care must be due to a disability that is expected to last longer than 30 days. The continued need for care must be redetermined and documented at each redetermination.

B-511-FITAP JOINT CUSTODY

When custody of a child is shared, the child is considered living with the parent who is requesting/receiving assistance if the child is in that parent's home at least one-half of the time.

If the child spends equal time with each parent, only one parent may receive assistance for the child and the other parent is referred to CSE.

II. PROCEDURES

There are no procedures associated with this policy.

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III. FORMS AND INSTRUCTIONS

There are no forms associated with this policy.

IV. REFERENCES

[LAC 67:III.1227](#)